

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
JORGE SOTO, JR.,

Index No.: 13346 /13

Filed On: July , 2013

PLAINTIFF,

-against-

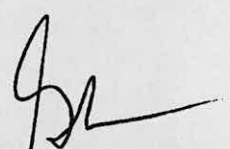
THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, "JOHN DOE 1",
"JOHN DOE 2", AND "JOHN DOE 3"(the name
"JOHN DOE" being fictitious and intended to designate
the police officers),

DEFENDANTS.

SUMMONS

Plaintiff designates KINGS
COUNTY as the place of trialThe basis of venue is the plaintiff's
Residence.-----X
TO THE DEFENDANTS:The plaintiff resides at:
4709 Fort Hamilton Parkway (3rd fl.)
Brooklyn, N.Y. 11210

YOU ARE HEREBY SUMMONED to answer the complaint in the this action and to serve a copy of your answer or, if the complaint is not served with summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of you failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 23, 2013By: GREG GARBER, ESQ.
Attorney for Plaintiff
60 Madison Ave – Suite 1005
New York, N.Y. 10010
(212) 779-2740Defendant's AddressTHE CITY OF NEW YORK
100 Church Street
New York, NY 10007THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10038JOHN DOE 1, JOHN DOE 2,
and JOHN DOE 3
C/O NYPD
1 Police Plaza
New York, NY 100382013 JUL 25 PM 3:58
FILED
KINGS COUNTY CLERK

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.: July/ /13
JORGE SOTO, JR.

Filed On: July , 2013

PLAINTIFF,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, "JOHN DOE 1",
"JOHN DOE 2", AND "JOHN DOE 3"(the name
JOHN DOE being fictitious and intended to designate
the police officers),

VERIFIED COMPLAINT

DEFENDANTS.

-----X

Plaintiff, by his attorney, GREG GARBER, ESQ., complaining of the above named
Defendants, respectfully alleges upon information and belief as follows:

**AS AND FOR A FIRST CAUSE OF ACTION
AGAINST ALL DEFENDANTS JOINTLY AS WELL AS SEVERALLY
PLAINTIFF JORGE SOTO, JR. ALLEGES:**

1. That at all times hereinafter mentioned, JORGE SOTO, JR. (hereinafter
"PLAINTIFF"), was an individual residing at all times relevant to this action at 4709 Fort
Hamilton Parkway, Brooklyn, N.Y. 11210.
2. That at all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK
(hereinafter "CITY") was and still is a municipal corporation, duly organized, created and
existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, the Defendant CITY, maintained a police
department, namely, Defendant, NEW YORK CITY POLICE DEPARTMENT (hereinafter
referred to as "POLICE DEPARTMENT") which was and still is under the control and
direction of the Defendant CITY, with its principal place of business located at 1 Police Plaza,
New York, N.Y. 10007.

4. That at all times hereinafter mentioned and specifically on May 7, 2013, the Defendant, JOHN DOE 1, is/was a law enforcement official employed by the Defendant CITY and the Defendant POLICE DEPARTMENT and acted under color of law and in the course of his employment as a law enforcement official on that date.

5. That at all times hereinafter mentioned and specifically on May 7, 2013, the Defendant, JOHN DOE 2, is/was a law enforcement official employed by the Defendant CITY and the Defendant POLICE DEPARTMENT and acted under color of law and in the course of his employment as a police officer on that date.

6. That at all times hereinafter mentioned and specifically on May 7, 2013, the Defendant "JOHN DOE 3" is/was a police officer employed the Defendant CITY and the Defendant POLICE DEPARTMENT and acted under color of law and in the course of his employment as a police officer on that date.

7. That on or about May 14, 2013, and within ninety (90) days after said cause of action arose, the PLAINTIFF complied with all of the applicable provisions of the General Municipal Law and served upon the aforementioned Defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, and "JOHN DOES" - Police Officers as yet unidentified", a Notice of Claim with intention to commence this action, in writing, sworn to by the Plaintiff, setting forth therein the matters required by Section 50(e) of the General Municipal Law.

8. That said verified notice of claim included, among other things, the name and post office address of the PLAINTIFF and his attorney, the nature of the claim, the place and manner in which the claim arose and the items of damage for the injuries claimed at the time to have been sustained.



9. That at least thirty (30) days have elapsed since the PLAINTIFF's notice of claim and notice of intention to sue herein referred to was served upon the Defendant THE CITY OF NEW YORK and the Defendants have failed to make an adjustment of payment thereof and this action is being commenced within one (1) year and ninety (90) days of the date that the PLAINTIFF's cause of action arose.

10. That in compliance with the demand by the Defendant CITY, a hearing was held on July 22, 2013, pursuant to the General Municipal Law of the State of New York and an authorization was given to the Defendant CITY, to conduct a physical examination of the PLAINTIFF.

11. That this action is being commenced within one (1) year and ninety (90) days of the date of the occurrence herein.

12. That at all times hereinafter mentioned and specifically On May 7, 2013, the Defendant, JOHN DOE 1 was acting in the scope of his employment as a police officer for the Defendants, THE CITY OF NEW YORK and the POLICE DEPARTMENT.

13. That at all times hereinafter mentioned and specifically on May 7, 2013, the Defendant, JOHN DOE 2 was acting in the scope of his employment as a police officer for the Defendants, THE CITY OF NEW YORK and the Defendant POLICE DEPARTMENT.

14. That at all times hereinafter mentioned and specifically on May 7, 2013, the Defendant, JOHN DOE 3 was acting in the scope of his employment as a police officer for the Defendants THE CITY OF NEW YORK and the Defendant POLICE DEPARTMENT.

15. Upon information and belief, that at all times herein mentioned and specifically on May 7, 2013, the Defendant, JOHN DOE 1 was a Police Officer employed by the Defendant CITY OF NEW YORK and the Defendant POLICE DEPARTMENT and was assigned to the 104th Precinct NYPD in the County of Queens, City and State of New York.

16. Upon information and belief, that at all times herein mentioned and specifically on May 7, 2013, the Defendant, JOHN DOE 2 was a Police Officer employed by the Defendant CITY OF NEW YORK and the Defendant POLICE DEPARTMENT and was assigned to the 1st Precinct NYPD in the County of New York, City and State of New York.

17. Upon information and belief, that at all times herein mentioned and specifically on May 7, 2013, the Defendant JOHN DOE 3 was a Police Officer employed by the Defendant CITY OF NEW YORK and the Defendant POLICE DEPARTMENT and was assigned to the 1st Precinct NYPD in the County of New York, City and State of New York.

18. That the Defendant JOHN DOE 1 is an individual, who at the time and place herein mentioned and specifically on May 7, 2013, was a police officer employed by the Defendants, THE CITY OF NEW YORK and the Defendant POLICE DEPARTMENT and was acting in the performance of his duties and authority on May 7, 2013.

19. That JOHN DOE 2 is an individual, who at the time and place herein mentioned and specifically on May 7, 2013, was a police officer employed by the Defendants, THE CITY OF NEW YORK and the Defendant POLICE DEPARTMENT and was acting in the performance of his duties and authority on May 7, 2013.

20. That JOHN DOE 3 is an individual, who at the time and place herein mentioned and specifically on May 7, 2013, was a police officer employed by the Defendants, THE CITY OF NEW YORK and the Defendant POLICE DEPARTMENT in the performance of his duties and authority on May 7, 2013.

21. Upon information and belief, that at all times herein mentioned the Defendants, THE CITY OF NEW YORK and the POLICE DEPARTMENT, its agents, servants, and/or employees operated, maintained, and controlled the aforementioned Defendant police officers.

22. That on May 7, 2013, the Defendant JOHN DOE 1 was on official duty and was acting within the scope of his authority as a Police Officer for the Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

23. That on May 7, 2013 defendant JOHN DOE 2 was on official duty and was acting within the scope of his authority as a Police Officer for the Defendants, THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.

24. That on May 7, 2013 the Defendant JOHN DOE 3 was on official duty and was acting within the scope of his authority as a Police Officer for the Defendants, THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.

25. That on May 7, 2013, at approximately 3:45 a.m., the PLAINTIFF was a pedestrian near the intersection of Baxter and Walker Streets, in the county and State of New York.

26. That on May 7, 2013, the PLAINTIFF was confronted by the defendant NYPD police officers. The Plaintiff clearly stated and otherwise indicated that he had no weapons and had done nothing wrong and that he would not offer any resistance to the defendant police officers.

27. That for no reason or justification, the PLAINTIFF was then assaulted, beaten, battered and harassed by the Defendants JOHN DOE 1, JOHN DOE 2, and JOHN DOE 3, who unlawfully and intentionally menaced, struck, beat and otherwise touched and assaulted the PLAINTIFF without justification, excuse or consent. More specifically, the PLAINTIFF was thrown down to the ground with force and after having been under the complete control of the Defendant police officers, beaten about his face and body and forcefully arrested and then painfully placed him in handcuffs.

28. That on or about May 7, 2013, the PLAINTIFF was arrested assaulted, beaten, battered and harassed as aforesaid, due to the negligence, culpable conduct, carelessness and recklessness of

the Defendants, THE CITY OF NEW YORK, THE POLICE DEPARTMENT and the individual unknown Defendant police officers.

29. The Defendants CITY and POLICE DEPARTMENT were negligent in failing to properly hire, monitor, supervise and train their police officers herein, as a result whereof this PLAINTIFF was caused to sustain serious personal and emotional injuries.

30. That on or about the May 7, 2013, the PLAINTIFF was assaulted, battered and illegally arrested, due to the willful and malicious conduct of the Defendant police officers and that as a result thereof the PLAINTIFF was caused to sustain serious personal, physical and psychological injuries.

31. That all of the foregoing occurred solely as a result of the carelessness, recklessness, culpable conduct and negligence of the Defendants, THE CITY OF NEW YORK and the POLICE DEPARTMENT, as well as the individual unknown Defendant police officers, in failing to properly hire and train its police officers; in that they failed to properly monitor, supervise and control the activities of their police officers and more specifically the Defendant police officers named herein; in inadequately and improperly supervising and controlling the activities of their police officers and more specifically the police officers named herein; in negligently and carelessly becoming abusive, belligerent, assaultive, and unruly; in failing to employ competent personnel; in negligently, carelessly and recklessly assaulting, attacking and abusing this PLAINTIFF; in violating the applicable rules, statutes and ordinances which govern the activities of the defendants, its agents, servants, and/or employees and in otherwise being negligent in the premises.

32. In doing and committing all the acts and things as aforesaid, the Defendants acted willfully, intentionally and maliciously.

THE HISTORY OF THE

REIGN OF KING CHARLES THE FIRST

IN WHICH ARE CONTAINED THE

CAUSES, THE CONDUCT, AND THE CONSEQUENCES

OF THE WAR, WHICH WAS

CONTINUED FROM THE

DEATH OF KING CHARLES THE FIRST

UNTIL THE RESTORATION OF

KING CHARLES THE SECOND

IN THE YEAR 1660

BY

JOHN BURNET

OF THE UNIVERSITY OF OXFORD

33. In doing all the acts and things aforesaid as aforesaid, the Defendants acted negligently in failing to use such care in the performance of police duties as reasonable prudent and careful police officers should have used under similar circumstances.

34. In doing all the acts and things aforesaid the Defendants, THE CITY OF NEW YORK, the POLICE DEPARTMENT their agents, servants and/or employees and the individual Defendant police officers acted carelessly, negligently and tortiously in failing to properly hire, train and supervise its police officers.

35. That the Defendants, in acting as stated herein, assaulted, battered and otherwise injured the PLAINTIFF in that the Defendants tortiously, unlawfully and intentionally menaced, struck, beat, assaulted, battered, dragged and otherwise touched the PLAINTIFF without justification, excuse or consent.

36. In doing and committing all of the acts and things as aforesaid, the Defendants acted carelessly, wantonly and negligently in failing to use such care in the performance of police duties as reasonably prudent and careful police officers would have used under similar circumstances.

37. That by reason of the foregoing, the PLAINTIFF was caused to and did sustain severe, painful and serious personal injuries in and about his face, head, limbs and body; became sick, sore, lame and disabled; was caused to suffer fractures, contusions, abrasions, lacerations, dislocations and sprains; was caused to suffer a severe shock to his nervous system and certain internal injuries; was caused to suffer and still continues to suffer great physical pain, mental anguish and bodily injuries; was confined to a hospital, where he underwent extensive facial surgeries, confined to bed and home for a long period of time; was compelled to undergo hospital and medical aid, treatment and attention and to expend diverse sums of money for same; the PLAINTIFF was greatly injured both bodily and mentally; has been prevented

from engaging in his usual activities for a long period of time, all with attendant losses and since some of said injuries are of a permanent and long lasting nature, and upon information and belief he will continue to suffer continuous pain, suffering, inconvenience, loss of enjoyment of life, and damage in the future.

38. This action, as well as all causes of action pleaded herein fall within one or more of the exceptions set forth in CPLR ss1602.

39. That the amount of said damages sustained by the PLAINTIFF as a result of the aforesaid serious personal injuries and pecuniary losses are in a substantial sum of money to be determined by the court and jury.

40. That as a result of the aforesaid facts and circumstances and actions committed by the Defendants herein, the PLAINTIFF has been seriously damaged and as a result thereof alleges that he is entitled to money damages, in addition to punitive damages, against the Defendants, jointly, as well as severally, in such amounts that exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this action.

AS AND FOR A SECOND CAUSE OF ACTION
PLAINTIFF JORGE SOTO, JR. ALLEGES:

41. The PLAINTIFF repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs designated "1" through "40" hereof of this complaint, with the same force and effect as if herein fully set forth at length.

42. That the Defendants acted in such a manner so as to constitute gross negligence and under such circumstances as to show heedlessness and utter disregard of the result upon the rights and safety of others, and more particularly the PLAINTIFF herein and did so.

43. That the Defendants acted deliberately with knowledge of the PLAINTIFF's rights and with the intent to interfere therewith and deliberately with intent to cause serious bodily and emotional harm to the PLAINTIFF herein and did so.

44. That in doing all the acts and things aforesaid, the Defendants acted carelessly and negligently in failing to use such care in the performance of police duties as reasonably prudent and careful police officers should have used under similar circumstances.

45. That in doing all the acts and things as stated aforesaid, the Defendants, THE CITY OF NEW YORK, the POLICE DEPARTMENT, their agents servants and/or employees acted negligently in failing to properly hire and train their police officers.

46. That by reason of the wanton, intentional, reckless and malicious acts by the Defendants as aforesaid, the PLAINTIFF alleges that he is entitled to punitive damages against the Defendants, jointly, as well as severally, in addition to all other damages, in an amount which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction of this accident.

AS AND FOR A THIRD CAUSE OF ACTION
PLAINTIFF JORGE SOTO, JR. ALLEGES:

47. The PLAINTIFF repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs designated "1" through "46" hereof of this complaint, with the same force and effect as if herein fully set forth at length.

48. That on May 7, 2013, the Defendant unknown police officers arrested the PLAINTIFF, JORGE SOTO, JR., and deprived him of his liberty.

49. That this arrest was made without warrant or other legal process and was unlawful, in that no crime had been committed and in that there was no reason or cause for belief that PLAINTIFF had committed any crime.

50. In doing all the acts and things aforesaid, the Defendant unknown police officers acted illegally, willfully and maliciously.

51. That after having been arrested, the PLAINTIFF, JORGE SOTO, JR., was held in custody and restrained and imprisoned and denied of his liberty until he was released.

52. That while under arrest and deprived of his liberty, the PLAINTIFF JORGE SOTO, JR., was taken to a police station, fingerprinted and "booked." Plaintiff's name and pedigree were entered on the police records according to the police practice on the arrest of criminals and a charge was entered that he had been arrested.

53. That by reason of the foregoing, the PLAINTIFF was unlawfully and falsely detained and arrested.

54. That by reason of the foregoing this plaintiff was unlawfully and falsely imprisoned, restrained, confined, detained and arrested without adequate legal justification.

55. That on May 7, 2013, the Defendants JOHN DOE 1, JOHN DOE 2, and JOHN DOE 3 were acting within the scope of their employment as police officers for the Defendants, THE CITY OF NEW YORK and the POLICE DEPARTMENT.

56. That at all times hereinafter mentioned, the PLAINTIFF was conscious of the imprisonment, restraint and confinement that was inflicted upon him and did not consent to the restraint and confinement.

57. That at all times hereinafter mentioned, the aforementioned arrest, imprisonment, confinement and restraint was not privileged.

58. That in order to procure release from the aforementioned false arrest and imprisonment, the PLAINTIFF was required to employ counsel and was put to other expenses.

59. That as a result of all the aforementioned acts of the Defendants, the PLAINTIFF was greatly humiliated and subjected to mental, emotional and bodily distress all to his damage.

60. That by reason of the foregoing acts by the Defendants, the PLAINTIFF, JORGE SOTO, JR'S' civil rights under 42 U.S.C. Section 1983, were violated in that the PLAINTIFF was deprived of his rights, privileges and immunities secured by the Constitution and laws of the United States of America by individuals (the presently unknown Defendant police officers)

who, under color of a statute or regulation of a State, caused the PLAINTIFF to be so deprived and other and further violations of PLAINTIFF's rights and privileges secured to him under the Constitutions of the United States and the State of New York.

61. That as a result of the aforesaid actions by the Defendants, the PLAINTIFF JORGE SOTO, JR. is entitled to money damages against the Defendants, jointly, as well as severally, the amount of which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction of this action.

62. That in accordance with 42 USC 1983, the PLAINTIFF JORGE SOTO, JR. is entitled to reasonable attorney's fees at the conclusion of this case, in addition to all other damages to which he is entitled, to be set and determined by this Honorable Court.

AS AND FOR A FOURTH CAUSE OF ACTION
PLAINTIFF JORGE SOTO, JR. ALLEGES:

63. The PLAINTIFF repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs designated "1" through " 62 " hereof of this complaint, with the same force and effect as if herein fully set forth at length.

64. That on May 7, 2013, the PLAINTIFF was arrested.

65. That on May 7, 2013 the PLAINTIFF was arrested in the County of New York, City and State of New York and was taken to the 1st Precinct and Central Booking, where he was thereafter falsely imprisoned and confined.

66. That because of this false arrest and malicious prosecution of the PLAINTIFF by the Defendants, the PLAINTIFF was subjected to great indignity and humiliation, pain and distress of mind and body, was prevented from attending to his usual business, was subjected to expense in the procurement and services of counsel in his defense of the bogus and false charges filed against him.

67. That as a result of the foregoing facts and circumstances, the PLAINTIFF JORGE SOTO, JR. was seriously damaged and alleges that he is entitled to money damages against the Defendants, jointly, as well as severally, the amount of which exceeds the jurisdictional limitations of all lower courts which would otherwise have jurisdiction of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
PLAINTIFF JORGE SOTO, JR. ALLEGES:

68. The PLAINTIFF repeats and reiterates each and every allegation contained and heretofore mentioned paragraphs designated "1" through "67" hereof of this complaint, with the same force and effect as if herein fully set forth at length.

69. That at all times hereinafter mentioned, the Defendants herein and each of the aforesaid individual Defendant police officers acted under color of law and without lawful authority or right and did violate PLAINTIFF's constitutional rights guaranteed under the Fourth, Fifth and Fourteenth Amendments of the Federal Constitution in violation of 28 U.S.C. 1983, as well as other applicable Federal and State laws.

70. That by reason of the violation of the PLAINTIFF's civil rights as aforesaid, the PLAINTIFF is entitled to compensatory and punitive damages, as well as attorney's fees as against the Defendants, jointly, as well as severally, the amount of which exceeds the jurisdiction limitations of all lower courts that might otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION
PLAINTIFF JORGE SOTO, JR. ALLEGES:

71. The PLAINTIFF repeats and reiterates each and every allegation contained and heretofore mentioned in paragraphs designated "1" through "70" hereof of this complaint, with the same force and effect as if herein fully set forth at length.

72. That the actions of the individual unknown police officer Defendants, THE CITY OF NEW YORK, the POLICE DEPARTMENT, its agents, servants and/or employees, hereinbefore and hereinafter alleged, were malicious, intentional, willful and grossly negligent.

73. That the actions of the Defendants, JOHN DOE 1, JOHN DOE 2, JOHN DOE 3, hereinafter and hereinbefore alleged, were malicious, intentional, willful and grossly negligent.

74. That the Defendants, THE CITY OF NEW YORK and the POLICE DEPARTMENT, authorized, permitted and ratified the unlawful, negligent, wanton, unlawful and reckless acts of its agents, servants and/or employees.

75. That by reason of the assault and battery sustained by the PLAINTIFF, the PLAINTIFF alleges that he is entitled to compensatory and punitive damages against the Defendants, jointly, as well as severally, in such amounts that exceed the jurisdiction of all lower courts that would otherwise have jurisdiction over this matter.

AS AND FOR A SEVENTH CAUSE OF ACTION
PLAINTIFF JORGE SOTO, JR. ALLEGES:

76. The PLAINTIFF repeats and reiterates each and every allegation contained and heretofore mentioned in paragraphs designated "1" through " 75" hereof of this complaint, with the same force and effect as if herein fully set forth at length.

77. That on May 7, 2013, the PLAINTIFF was a pedestrian near the intersection of Baxter and walker Streets in the County of New York, City and State of New York.

78. That on May 7, 2013, the PLAINTIFF was assaulted, battered, slandered and had his civil rights violated by the Defendants and/or defendant, by their agents, servants, and/or employees defendants, JOHN DOE 1, JOHN DOE 2, and JOHN DOE 3, who were acting within the scope of their authority in their position as police officers and as agents, servants and/or employees of the Defendants, THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.

79. That the aforementioned Defendants, JOHN DOE 1, JOHN DOE 2, and JOHN DOE 3, knowingly, intentionally and willfully assaulted and battered the PLAINTIFF.

80. That the aforementioned DEFENDANTS, JOHN DOE 1, JOHN DOE 2, and JOHN DOE 3, had the intention of inflicting severe bodily and emotional injury upon the PLAINTIFF herein.

81. That by reason of said assault and battery and the intentional infliction of emotional and psychological injuries, the PLAINTIFF was caused to suffer severe and serious injuries in and about diverse parts of his person and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

82. That by reason of the assault and battery, as well as other wrongful acts committed by the Defendants upon the PLAINTIFF, the PLAINTIFF demands compensatory and punitive damages as against all of the Defendants, jointly, as well as severally, the amount of which exceeds the jurisdiction limitations of all lower courts that would otherwise have jurisdiction over this matter.

83. That all causes of action pleaded in this complaint fall within one or more of the exceptions contained in Sections 1602, et seq. of the CPLR.

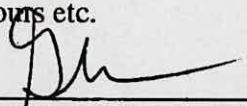
WHEREFORE, the PLAINTIFF JORGE SOTO, JR., demands judgment against the Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, "JOHN DOE 1", JOHN DOE 2" and "JOHN DOE 3", jointly, as well as severally, on the First through Seventh Causes of Action, in such amounts which exceed the jurisdiction limits of all lower courts, in addition to punitive damages to be determined by this Court, which would otherwise have jurisdiction over this action, together with interest, costs and disbursements of this action. Additionally, the PLAINTIFF demands reasonable attorney's fees as provided for

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in 42 USC 1983, as well as attorney's fees because of the intentional and malicious acts of the Defendants as aforesaid.

Dated: New York, New York
July 23, 2013

Yours etc.



GREG. GARBER, ESQ.
Attorney for Plaintiff
JORGE SOTO, JR.
60 Madison Ave – Suite 1005
New York, NY 10010
(212)779-2740

TO: THE CITY OF NEW YORK
Defendant
100 Church Street
New York, N.Y. 10007

THE NEW YORK CITY POLICE DEPARTMENT
Defendant
1 Police Plaza
New York, N.Y. 10038

JOHN DOE NO. 1
Defendant
c/o NYPD 1 Police Plaza
1 Police Plaza
New York, N.Y. 10038

JOHN DOE NO. 2
Defendant
c/o NYPD 1 Police Plaza
New York, N.Y. 10038

JOHN DOE NO. 3
Defendant
c/o NYPD 1 Police Plaza
New York, N.Y. 10038

VERIFICATION

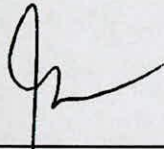
The undersigned, an attorney admitted to practice in the Courts of New York State, say that:

I, GREG GARBER, ESQ., the attorney of record for the plaintiff, **JORGE SOTO, JR.**, have read the annexed **SUMMONS AND VERIFIED COMPLAINT**, know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon the documents and information in our files.

The reason I make this verification instead of the plaintiff is that said plaintiff resides outside the county in which this law firm maintains its office.

I affirm that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
July 23, 2013



GREG GARBER, ESQ.

TO: THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10038

JOHN DOE 1, JOHN DOE 2,
and JOHN DOE 3
C/O NYPD
1 Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.: /13
JORGE SOTO, JR.,

Plaintiff,

-against-

CERTIFICATION

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, "JOHN DOE 1",
"JOHN DOE 2", AND "JOHN DOE 3"(the name
"JOHN DOE" being fictitious and intended to designate
the police officers),

Defendants.

-----X

GREG GARBER, ESQ., an attorney duly admitted to practice law before the
Courts of the State of New York, hereby certifies in accordance with 22 NYCRR Part 130-1.1-a
of the Rules of the Chief Administrator that to the best of my knowledge, information and
belief, which was formed after a reasonable inquiry under the circumstances, the presentation of
the SUMMONS AND VERIFIED COMPLAINT and its contents are not frivolous, as the term
is defined in Part 130.

Dated: New York, New York
July 23, 2013



GREG GARBER, ESQ.
Attorney for Plaintiff
60 Madison Ave – Suite 1005
New York, N.Y. 10010
(212) 779-2740

INDEX NO.

/13

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JORGE SOTO, JR.,

PLAINTIFF,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, "JOHN DOE 1",
"JOHN DOE 2", AND "JOHN DOE 3"(the names
"JOHN DOE" being fictitious and intended to designate
the police officers),

DEFENDANTS.

-----X
SUMMONS AND VERIFIED COMPLAINT
-----X

GREG GARBER, ESQ.
ATTORNEY FOR PLAINTIFF
JORGE SOTO, JR.
OFFICE AND POST OFFICE ADDRESS
60 MADISON AVE – SUITE 1005
NEW YORK, N.Y. 10010
(212) 779-2740
-----X

